

1 _____ BILL NO. _____

2 INTRODUCED BY _____

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4 A BILL FOR AN ACT ENTITLED: "AN ACT SUBMITTING TO THE QUALIFIED ELECTORS OF MONTANA AN
5 AMENDMENT TO ARTICLE VII, SECTION 9, OF THE MONTANA CONSTITUTION TO REVISE ELIGIBILITY
6 TO BE A SUPREME COURT JUSTICE BY REQUIRING AT LEAST 5 YEARS OF ACTIVE PRACTICE OF
7 LAW PRIOR TO APPOINTMENT OR ELECTION; AND PROVIDING AN EFFECTIVE DATE AND AN
8 APPLICABILITY DATE."

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10 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

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12 **Section 1.** Article VII, section 9, of The Constitution of the State of Montana is amended to read:

13 **"Section 9. Qualifications.** (1) A citizen of the United States who has resided in the state two years
14 immediately before taking office is eligible to the office of ~~supreme court justice or district court judge~~ if admitted
15 to the practice of law in Montana for at least five years prior to the date of appointment or election.

16 (2) A citizen of the United States who has resided in the state two years immediately before taking
17 office is eligible to the office of supreme court justice if admitted to the practice of law in Montana and if
18 engaged in the active practice of law for at least five years prior to the date of appointment or election.

19 (3) Qualifications and methods of selection of judges of other courts shall be provided by law.

20 ~~(2)~~(4) No supreme court justice or district court judge shall solicit or receive compensation in any form
21 whatever on account of his office, except salary and actual necessary travel expense.

22 ~~(3)~~(5) Except as otherwise provided in this constitution, no supreme court justice or district court
23 judge shall practice law during his term of office, engage in any other employment for which salary or fee is
24 paid, or hold office in a political party.

25 ~~(4)~~(6) Supreme court justices shall reside within the state. During his term of office, a district court
26 judge shall reside in the district and a justice of the peace shall reside in the county in which he is elected or
27 appointed. The residency requirement for every other judge must be provided by law."

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NEW SECTION. Section 2. Two-thirds vote required. Because [section 1] is a legislative proposal to amend the constitution, Article XIV, section 8, of the Montana constitution requires an affirmative roll call vote of two-thirds of all the members of the legislature, whether one or more bodies, for passage.

NEW SECTION. Section 3. Effective date. If approved by the electorate, [this act] is effective January 4, 2027.

NEW SECTION. Section 4. Applicability. [This act] applies to appointments or elections of supreme court justices that occur on or after [the effective date of this act].

NEW SECTION. Section 5. Submission to electorate. [This act] shall be submitted to the qualified electors of Montana at the general election to be held in November 2026 by printing on the ballot the full title of [this act] and the following:

☐ YES on Constitutional Amendment ____.

☐ NO on Constitutional Amendment ____.

- END -